

Motion to Be Relieved as Counsel.

3. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court **continues** the case management conference to April 30, 2026.

4. 9:05 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
***HEARING ON MOTION IN RE: STRIKE PLTFS COMPLAINT**
FILED BY: VEG SAN RAMON, LLC,
TENTATIVE RULING:

Plaintiff Robin Fernandez brought this action against VEG San Ramon LLC DBA Veterinary Emergency Group San Ramon and Tyra Eggert for (1) veterinary professional negligence, (2) intentional infliction of emotional distress, (3) fraud and deceit, (4) conversion (trespass to chattels), (5) violation of consumer legal remedies act, and (6) unfair business practices. She seeks economic, emotional distress, punitive, exemplary, and compensatory damages, as well as restitution, injunctive relief, attorneys' fees, and the peculiar economic value of her deceased pet. By this motion, Defendants seek to strike from Plaintiff's complaint the requests for emotional distress, punitive, exemplary, and compensatory damages (as to the Sixth Cause of Action), as well as restitution, injunctive relief and the peculiar economic value of the pet. Defendants were unable to meet and confer with Plaintiff despite efforts to do so, and approximately one month after the filing of this Motion, Plaintiff's counsel filed a request to be relieved as counsel—that hearing is set for May 14, 2026. The Court received no opposition to this Motion, but did receive a notice that current Plaintiff's counsel will be appearing remotely.

Analysis

Emotional Distress Damages

Plaintiff cannot recover emotional distress damages for veterinary malpractice. (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1514-1515.) There is nothing in the complaint supporting any extension of these tort damages to this matter. This claim will therefore be stricken.

Punitive Damages

A claim for punitive damages must be supported by specific factual allegations. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Civil Code section 3294, subdivision (a) provides: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Plaintiff has included no allegations of oppressive, fraudulent, or malicious conduct. This